

CONECT-R – MASTER TERMS, SPECIFICATIONS & SERVICES AGREEMENT

This Master Terms and Specifications Agreement (the "Agreement") is entered into by and between **Conect-R** (the "Service Provider") and the subscribing business entity (the "Client"). By executing this Agreement, the Client acknowledges and agrees to the following terms and conditions:

1. Covered Services and New Offerings

This Agreement governs the provision of memberships, digital routing links, NFC hardware delivery, and access to any **New Service or Platform** offered by Conect-R (including, but not limited to, metric dashboards, software integrations, and CRM/marketing modules). The exact specifications of the chosen tier or supplementary services will be detailed in the respective purchase order.

2. Plan Eligibility and Restrictions

Each business entity is limited to one (1) purchase per specific plan tier. Continuous service is managed exclusively through standard plan upgrades or downgrades. Duplicate plan purchases for the same business location are strictly prohibited.

3. Plan Upgrades and Hardware Adjustments

When upgrading to a higher-tier plan, the initial setup fee is waived. However, the Client is responsible for paying the price difference for any additional hardware required to fulfill the specifications of the newly selected tier.

4. Digital Update Processing Times

All requests involving modifications to digital menus or routing links included in the active membership shall be processed and published within forty-eight (48) hours of receipt of the official request.

5. Hardware Delivery Lead Times

The initial procurement and delivery of custom-printed physical hardware are subject to a standard production lead time of fifteen (15) to twenty (20) business days following final design approval by the Client.

6. "Use It or Lose It" Policy

Monthly tier benefits, which may include stipends for hardware replacements and digital updates, do not roll over and cannot be accrued or transferred to subsequent billing cycles.

7. On-Demand Replacements

Hardware replacements are provided upon request, subject to active tier limits and current stock availability. Requests exceeding the allocated monthly allowance will be invoiced at \$100.00 USD per bulk request, or \$30.00 USD per individual unit.

8. Cancellation and Termination Policy

Membership plans are billed strictly on a month-to-month basis. Cancellation may be requested at any time; however, the service will remain active until the conclusion of the current paid billing cycle. To prevent the processing of the subsequent automatic charge, cancellation requests must be submitted at least thirty (30) days prior to the next scheduled billing date. Setup fees and recurring monthly payments are **non-refundable**, and no partial refunds or prorated credits will be issued under any circumstances. Upon cancellation, all purchased physical hardware remains the property of the Client; nevertheless, all digital links, backend dashboard access, and cloud hosting tied to the Conect-R ecosystem will be terminated immediately upon expiration. The reinstatement of a canceled service is subject to a \$50.00 USD reactivation fee.

9. Shipping and Handling Costs

The Client acknowledges and agrees that all shipping, handling, and delivery costs associated with the provisioning of physical hardware (e.g., NFC displays, smart cards, wristbands, or replacement parts) are the sole responsibility of the Client. Shipping fees are explicitly excluded from base tier pricing and will be securely invoiced or collected prior to dispatch.

10. Payment Authorization and Card on File

The Client explicitly consents to the secure, automated storage of their selected payment card within the Conect-R secure payment gateway for recurrent billing purposes. By entering into this Agreement, the Client expressly authorizes Conect-R to initiate charges against the stored

payment method for all applicable monthly subscription fees, recurring services, account add-ons, and other agreed-upon charges, until the subscription is officially terminated in accordance with Clause 8.

11. Confidentiality and Data Privacy

Conect-R acknowledges that, during the provision of its modern technology services, it may acquire access to proprietary commercial data (the "Client Data"). Conect-R is firmly committed to maintaining the utmost confidentiality regarding such information, utilizing it solely and exclusively to optimize, deliver the agreed-upon services, and enhance the Client's user experience. Under no circumstances will Conect-R sell, distribute, or misuse these internal databases or metrics for the benefit of unauthorized third parties.

12. Limitation of Liability and Disclaimer of Warranties

Conect-R provides its applications, platforms, and services on an "AS-IS" and "AS AVAILABLE" basis. Conect-R expressly disclaims all warranties of any kind, whether express or implied, including but not limited to the implied warranties of merchantability and fitness for a particular purpose. We do not warrant that the service will be uninterrupted, error-free, or that it will generate specific sales results for the Client. Conect-R is strictly exempt from liability during scheduled maintenance windows or system updates.

To the maximum extent permitted by applicable law, Conect-R shall not be liable to the Client or any third party for any direct, indirect, incidental, special, or consequential damages (including loss of profits or reputational damage), arising out of software downtime, cloud hosting outages, or force majeure events. In no event shall Conect-R's aggregate liability exceed the total amount accumulated and paid by the Client in the three (3) months immediately preceding the event giving rise to the claim.

13. Intellectual Property and Enhancements

Each Party retains full ownership rights to its respective trademarks and brand identity. The Client retains absolute ownership of all graphical assets, logos, and menu content provided.

Conversely, Conect-R perpetually and exclusively retains all rights, title, and interest in and to the online infrastructure, source codes, mobile applications, Application Programming Interfaces (APIs), underlying algorithms, proprietary databases, and dashboards associated with the Conect-R ecosystem. Any ideas, suggestions, feedback, or feature requests provided by the

Client shall become the sole and exclusive intellectual property of Conect-R, irrevocably, without any obligation or compensation owed to the Client.

14. License to Use

Subject to the Client's ongoing compliance with this Agreement and timely payment of all fees, Conect-R grants the Client a limited, non-exclusive, non-transferable, and revocable license to access and use the provided software and customized dashboards exclusively for its internal business operations. The physical hardware delivered acts merely as an access medium and does not transfer any legal ownership or rights over the embedded Conect-R software.

15. Client Content Responsibility

The Client bears sole and absolute legal responsibility for the accuracy, legality, and copyright compliance of all texts, menus, logos, and images supplied to be uploaded onto Conect-R platforms. The Client unconditionally releases, indemnifies, and holds harmless Conect-R against any third-party claims, lawsuits, or penalties arising from alleged copyright infringement related to the uploaded client content.

16. Promotional Rights (Marketing)

The Client irrevocably authorizes Conect-R to feature its logo, trademark, and success story representation across Conect-R's websites, social media channels, and marketing collateral as part of its public client portfolio.

17. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the prevailing laws of the state and country where the Conect-R corporate headquarters is legally incorporated. Any legal dispute shall be subject to the exclusive jurisdiction of said courts, and the Client explicitly waives any other jurisdiction that might otherwise correspond.

18. Modifications and Entire Agreement

This document constitutes the final, complete, and exclusive agreement between the Parties concerning its subject matter and supersedes all prior, unsigned discussions and iterations. Conect-R reserves the right to amend its technical policies and will provide formal notice of any structural adjustments necessary for the optimal functioning of the ecosystem.

Client Acknowledgment By signing below or providing automated validation within a secure checkout portal, the Client confirms that they have thoroughly read, fully comprehend, and agree to be legally bound by the terms and privacy stipulations of this modern software and services Agreement.

Commercial Client Name: _____

Associated Business Type: _____

Signature / Digital Approval: _____

Date of Agreement: _____